

the Act's scope, with provisions specifically addressing it. Negotiations among the EU Parliament, Council, and Commission are under way to finalise the law by year-end.



The Act acknowledges the value of responsible AI tools pioneered by the open source community, including model cards and data sheets for data sets. Open source developers play a pivotal role in driving AI innovation, maintaining essential frameworks like PyTorch and TensorFlow, and creating plugins for systems like ChatGPT.

Recognising the significance of open source innovation, the Parliament's text includes a risk-based exemption for open source developers, allowing collaboration and protection for developers incorporating open source components. Compliance with best practices, such as model and data cards, is encouraged but falls on entities using open source components.

However, some aspects of the Act can be improved. There are concerns regarding obligations for open source developers, academics, and non-profits, particularly with requirements tailored for commercial products. As negotiations progress, it is crucial to calibrate requirements for foundation models based on risk levels and feasibility.

The impact of the EU's A.I. regulations may extend beyond the single market, with other countries considering AI regulations. The EU's experience can serve as an example, demonstrating how regulations can support open source developers. US Senate Majority Leader Schumer has unveiled a bipartisan framework for AI regulation, highlighting the need to include open source developers in discussions.

Canada, too, is actively working on AI legislation with a risk-based approach that protects collaborative AI development.

EU's proposed Cyber Resilience Act raises alarms in the open source industry

The European Union's Cyber Resilience Act (CRA) is under scrutiny as open source developers and organisations express worries about its implications for the industry. The proposed regulation aims to enhance cybersecurity and establish common standards for digital products. However, there are significant issues that could hinder the future of open source in the EU and beyond.



The current form of the CRA fails to provide clear exemptions for open source developers and maintainers. This omission raises questions about potential legal risks and liabilities for vulnerabilities found in open source code used in commercial products.

The CRA's text may discourage commercial support of open source projects, which heavily rely on contributions from commercial entities.

The proposed regulation requires immediate disclosure of vulnerabilities to the European Union Agency for Cybersecurity (ENISA), irrespective of the availability of

a fix. This approach disregards coordinated disclosure practices, increasing the risk of exploits before security patches are developed.

The legislation is set for a vote in the parliament's Industry, Research and Energy (ITRE) committee and, if unopposed, may be adopted without a full parliamentary vote.

Industry bodies, including GitHub, need to voice their opposition to the proposed measure to protect the interests of the open source community. Developers, maintainers, and stakeholders should reach out to MEPs (members of the European Parliament), urging them to investigate the potential consequences and ensure the voices of the open source community are heard.

Failure to address these concerns could result in significant ramifications.

Penalising open source developers and maintainers may lead to a fragmented community, hindering vital projects across critical sectors such as healthcare and infrastructure. Non-EU open source producers may avoid the EU market, limiting access to important projects and repositories. Concerns about legal risks and liabilities may discourage developers from contributing to and maintaining open source projects, impacting innovation and collaboration.

The open source industry needs to take immediate action to safeguard the future of open source in the EU and maintain global collaboration and innovation.

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